

****March 20, 2025****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed, in February 2025, an investigation into the operator ONE UNITED PROPERTIES S.A and found a violation of the provisions of Article 6, Article 12 paragraph (3), Article 15, and Article 17 of Regulation (EU) 2016/679. As such, the operator was sanctioned administratively:

- with a fine of 4,977.00 lei (equivalent to 1,000 EURO) for the violation of Article 6 of Regulation (EU) 2016/679;
- with a fine of 4,977.00 lei (equivalent to 1,000 EURO) for the violation of the provisions of Article 12 paragraph (3), Article 15, and Article 17 of Regulation (EU) 2016/679.

The investigation was initiated following petitions from an individual who claimed that the provisions of Regulation (EU) 2016/679 had been violated. During the investigation, the National Authority for the Supervision of Personal Data Processing found that the operator sent unsolicited commercial messages to the data subject over a certain period of time. In this context, the operator did not provide evidence of obtaining consent from the data subject for the processing of their personal data for marketing purposes, thus violating the provisions of Article 6 of Regulation (EU) 2016/679.

Additionally, it was found that the data subject repeatedly requested confirmation of whether their personal data was being processed by the operator, as well as whether this data had been deleted, since they were receiving unsolicited commercial messages. Thus, it resulted that the operator did not provide evidence of sending a response within the legal term of no more than one month to the requests for exercising the rights of access and deletion from the data subject.

Therefore, the provisions of Article 12 paragraph (3), Article 15, and Article 17 of Regulation (EU) 679/2016 were violated. At the same time, based on the provisions of Article 58 paragraph (2) letters c) and d) of Regulation (EU) 2016/679, the following corrective measures were imposed on the operator:

- taking necessary measures to ensure that, in the future, the processing operations comply with the provisions of Regulation (EU) 2016/679, namely to avoid processing personal data without the consent of the data subjects and without the existence of another legal basis for processing the personal data of the data subjects, including for marketing purposes, in relation to the provisions of Article 6 of Regulation (EU) 2016/679;
- adopting internal procedures regarding the resolution of requests submitted by data subjects under the provisions of Articles 12-22 of Regulation (EU) 2016/679, ensuring compliance in all cases with the applicable provisions regarding the analysis and resolution of these requests and communicating responses to data subjects within the legal deadlines, as well as regularly training the operator's staff in this regard;
- sending a response to the data subject regarding the requests for exercising the right of access and the right of deletion.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****